



POLICE DEPARTMENT

June 15, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Lamont Brown
Tax Registry No. 929787
Transit Bureau District No.33
Disciplinary Case No. 83835/08

The above-named member of the Department appeared before me on May 26, December 4, and December 15, 2009, charged with the following:

1. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about February 24, 2008, within the confines of the 63rd Precinct, in Kings County, refused to comply with repeated direct orders from Police Officer Andre Grant, to stop advancing and to step back and away from himself and other Members of Service during a crowd control condition.

P.G. 203-03, Page 1, Paragraph 2 – COMPLIANCE WITH ORDERS
P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about February 24, 2008, did consume an intoxicant to the extent that said Police Officer was unfit for duty.

P.G. 203-04, Page 1, Paragraph 2 – FITNESS FOR DUTY

3. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about February 24, 2008, within the confines of the 63rd Precinct, in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that he failed to identify himself to on-duty Member (s) of the Service, after becoming involved in a police incident.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

4. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, on or about February 24, 2008, did fail and neglect to list two (2) firearms on his Force Record (PD406-143), as required.

P.G. 204-08, Page 1, Paragraph 3 – UNIFORMS AND EQUIPMENT

5. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about February 24, 2008, at a location known to this Department, did interfere with an official Department investigation, in that said Officer did refuse to answer questions directed to him as a part of an official Department investigation, as required.

P.G. 206-13, Page 2, Paragraph 12 – INTERROGATION OF MEMBERS OF
THE SERVICE

P.G. 203-10, Page 1, Paragraph 2(D) – PUBLIC CONTACT – PROHIBITED
CONDUCT

6. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about February 24, 2008, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer was improperly in possession of one or more unregistered firearms, to wit: a Smith & Wesson 44 Magnum, serial # BFY3816, and a Ruger Black Powder Handgun, Serial #145-64471. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

7. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about February 24, 2008, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer did fail to voucher unregistered firearm(s), to wit: a Smith & Wesson 44 Magnum, serial # BFY3816, and a Ruger Black Powder Handgun, Serial #145-64471. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

8. Said Police Officer Lamont Brown, assigned to Transit Bureau District #33, while off-duty, on or about and between February 18, 2008 and February 24, 2008, failed to submit, without delay, a copy of bill of sale to the desk officer/counterpart of permanent command, as required. (*As amended*)

P.G. 204-10, Page 1, Paragraph 6 – HANDGUN PURCHASE

The Department was represented by Lisa McFadden, Esq., Department Advocate's Office, and the Respondent was represented by John P. Tynan, Esq.

The Respondent, through his counsel, entered a plea of Guilty to Specification No. 2 and Not Guilty to the other charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent having pled guilty is found Guilty of Specification No. 2. The Respondent is found Guilty of Specification Nos. 1, 3 and 5. Specification No. 4 was Dismissed by the Department. It is recommended that Specification Nos. 6, 7 and 8 be Dismissed.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Jason Moran, Captain Samuel Hoffman, Officer Andre Grant, Sergeant Michael McGill, Sergeant John Baldino, and Sergeant David Villanueva as witnesses.

Sergeant Jason Moran

Moran is an eight-and-a-half year member of the Department and has been assigned to the Transit Bureau Investigations Unit since October 2006. He was promoted to the rank of sergeant in October 2005.

Moran stated that his basic duties at the Transit Bureau Investigations Unit included conducting internal investigations for misconduct cases, patrol monitoring, and

integrity issues with the commands within the unit.

Moran testified that in February 2008, he was assigned an investigation regarding the Respondent and as part of that investigation, there was an indication that the Respondent had in his possession weapons which were not properly documented. Moran explained that he obtained this information from the memorandum, UF-49 ("49") prepared by Captain Hoffman, who was the duty captain in that incident. The 49 stated that there were two firearms that were not listed on the Respondent's Force Record. Moran stated that this was the 49 that was prepared with regard to the call out and that he reviewed the 49 as part of his investigation.

Moran testified that he did a follow-up investigation regarding whether those weapons were, in fact, properly documented. After reviewing the Property Clerk's Invoice ("voucher"), Moran stated that the voucher indicated that the two weapons believed to be improperly documented were owned by the Respondent. Moran described the two weapons, one of which was a Smith and Wesson 44 Magnum and the other was a Ruger Black Powder handgun.

Moran testified that as part of the investigation into whether the weapons were properly documented, he checked with the Department Firearms Range, which did not have a record of the firearms. He checked the Department personnel database, which also did not show the two firearms. Furthermore, Moran checked the Force Record and the New York State Record, neither of which had a record of the two firearms.

Moran explained that an officer's responsibility when coming into possession of firearms is to prepare an "acquisition of firearms report" and present it to the desk officer along with the actual firearm. Then, the report is forwarded through channels to the

Range and then to the State. Moran further explained that the desk officer is supposed to list a weapon on an officer's Force Record after the firearm has been presented to the desk officer. Moran testified, after reviewing the Respondent's Force Record card [Department's Exhibit (DX) 1], that it does not list the two weapons in question.

In determining how the Respondent came into possession of the weapons, Moran testified that during a PG 206-13 hearing ("GO-15"), the Respondent stated that the weapons were his uncle's, who at that time had recently passed away. The Respondent further stated that his aunt, who found the firearms, gave the weapons to the Respondent. Moran stated that he conferred with the aunt afterwards and she stated the same. After reviewing his notes from Worksheet 43, Moran recalled that the aunt stated that she had found and given the firearms to the Respondent in approximately late January or early February 2008. The Respondent's uncle had passed away on November 24, 2007.

Moran testified that there was a bill of sale (DX 2) for the two weapons in question which was dated February 18, 2008 and signed by the Respondent's aunt, Mary Ellen Forte. The bill of sale was notarized on June 13, 2008. Moran explained that the bill of sale looked like a regular, typed bill of sale with a standard notarization and not a bill of sale from a gun shop or any other business. Moran believed that he received the bill of sale document from the Respondent. Moran testified that he did not have any other document indicating when the weapons came into the Respondent's possession.

On cross-examination, Moran confirmed that the Respondent's uncle, who passed away, was a former part-time police officer in Westchester County during the '60's. Moran reaffirmed that he believed that it was the Respondent who gave him a copy of the bill of sale. Moran also confirmed that, through his review, the Respondent had a total of

five firearms when he was suspended. Moran testified that the first three firearms were delineated on the Respondent's Force Record and in the PEPR personnel profile as well.

During questioning by the Court, it was stipulated that the official Department interviews of the Respondent were held on February 24, 2008 and June 10, 2008. Moran testified that a member of service has ten days from the date of acquisition of a weapon to file the required paperwork.

During further cross-examination, Moran confirmed that in order to register a weapon, one would have to physically present the firearm to the desk officer along with the acquisition form. Moran testified that after the Respondent was suspended on February 24, 2008, the Respondent would not have been able to register the weapons because they were taken from him.

On redirect-examination, Moran stated that he believed that the regulation requiring members of service to list weapons within ten days of acquisition was a New York State law. He was unsure whether it was also a Patrol Guide rule. Moran stated that the form provided by the Department for members to fill out about acquiring a firearm is a State form. After reviewing a copy of P.G. 204-08, Moran stated that the "10 day rule" was not listed in that particular section; however, that section did indicate an officer's responsibility to place all revolvers and pistols on the Force Record. The section did not state any specific time frame.

Captain Samuel Hoffman

Hoffman is a member of the Department for almost twenty-two years and he is currently the steady Brooklyn/Queens Transit High Alert Captain. He has been in the

the rank of Captain for about three years. In February 2008, Hoffman was assigned to the 78 Precinct in the confines of Patrol Borough Brooklyn South.

Hoffman testified that on February 24, 2008, he was part of a call out investigation regarding the possibility that the Respondent being unfit for duty. Hoffman stated that when he received the call regarding the investigation, he was told that a dispute took place in a catering hall and subsequently, responding officers from the 63 Precinct came across a member of the Department who was unfit for duty. After receiving this information, Hoffman called the 63 Precinct, spoke to Lieutenant Larardo, and then met with Larardo at the 63 Precinct.

When Hoffman arrived at the 63 Precinct, he had an opportunity to observe and briefly speak with the Respondent. Hoffman stated that in his career, he has had the opportunity to observe people who are intoxicated and is familiar with the indicia of people being intoxicated. Hoffman testified that he determined that the Respondent was unfit for duty based on the faint odor of alcohol on the Respondent's breath, his bloodshot watery eyes, and "things of that nature." Hoffman also testified that even though he determined that the Respondent was intoxicated, he did not feel that the Respondent was highly intoxicated. Hoffman did not recall whether the Respondent's speech was slurred as he only had a very minimal conversation with him. Hoffman stated that the Respondent did not appear to be ill or under any other type of physical distress and that the Respondent did not request any medical attention. Hoffman explained that the Respondent was crying a little bit but he took that to be due to the severity of the situation.

Hoffman confirmed that he filled out a fitness for duty report. After observing

and speaking with the Respondent, Hoffman notified the Brooklyn South Investigations Unit, explained to them the preliminary information, and asked them to come and assist him with the investigation. During that evening, Hoffman conducted five official Department interviews. Besides the Brooklyn South Investigations Unit, the Duty Inspector was also present for the investigation.

Hoffman confirmed that a Patrolman's Benevolent Association (PBA) attorney, Groter, was called down to assist the Respondent that evening. Hoffman testified that he explained to Groter that they were going to conduct GO-15's of the Respondent and other officers. According to Hoffman, Groter ultimately declared that he was not going to have the Respondent testify or give a statement.

Hoffman stated that an attempted interview of the Respondent did take place in the 63 Precinct on February 24, 2008 with Groter, three sergeants from the Brooklyn South Investigations Unit, and Hoffman present. Hoffman testified that the Respondent did not speak during the interview and seemed calm, but he felt that the Respondent was still intoxicated. Hoffman affirmed that the Respondent did not appear to be under any physical distress at that point and the Respondent did not have any trouble walking. Hoffman testified that he did not recall the Respondent speaking at all during the interview; however, he felt the Respondent understood what was taking place.

Hoffman confirmed that the interview had been tape recorded (DX 3). Hoffman testified that the Respondent was advised during the interview that the Respondent was required to answer questions directed by the interrogating officers. Furthermore, the Respondent was also advised that if he refused to answer, he would be subject to Department charges which could result in his dismissal from the Department. According

to Hoffman, Groter stated that he would be speaking on behalf of the Respondent and that they were not going to answer questions at that time. Hoffman testified that Groter stated that the Respondent was familiar with PG 206-13. According to Hoffman, the Respondent's refusal to be interviewed and the advisement of the subsequent consequences of refusing to answer questions was recorded on the tape. Hoffman affirmed that during the attempted interview, the Respondent seemed to understand what was going on and did not seem to be confused or be under any type of coercion.

Hoffman confirmed that the Respondent was relieved of his firearms as part of the call out investigation. Hoffman explained that the Respondent did not have any firearms on his person at the time but five firearms were recovered from the Respondent's residence. Hoffman testified that two of the firearms recovered were not listed in the Department's records. After reviewing the removal restoration form, Hoffman stated that one weapon was a Ruger and the other was a Smith and Wesson 44 Magnum.

On cross-examination, Hoffman reaffirmed that the Respondent did not say anything during the tape-recorded interview and that Groter spoke the entire time. Hoffman stated that during his time acting as a duty captain, he has dealt with officers that were unfit for duty. Hoffman did not recall ever finding someone unfit for duty and not suspending the person as a result. Hoffman confirmed that he had already determined with a fair degree of certainty that the Respondent was going to be suspended at some point that day.

Hoffman did not recall whether he told Groter that he had already found the Respondent unfit for duty before the interview was conducted. According to Hoffman, Groter told Hoffman prior to the interview that it was his legal opinion that he would not

allow the Respondent to testify because of the Respondent's condition. Groter then stated after the interview started that he felt the Respondent was too intoxicated to speak.

On redirect-examination, Hoffman confirmed that the Respondent had not been arrested that evening and that at the time there was no contemplation of seeking any criminal charges against the Respondent. Hoffman explained that if he were contemplating criminal charges against a suspect officer, the procedure to follow before conducting an interview of that officer would be to contact the DA's office to ask for permission to conduct a GO-15. Hoffman testified that he did not contact the DA's office that evening. Hoffman stated that to the best of his knowledge, no criminal charges were ever brought against the Respondent.

During further cross-examination, Hoffman testified that there were no members involved in the interview of the Respondent that were also involved in the investigation of the criminal acts that may have taken place at the catering hall. Hoffman stated that he was aware that there needed to be permission from the DA's office to conduct an interview of an officer where criminal charges were being pursued because compelled testimony could not be used in a criminal trial against the suspected officer. However, Hoffman was not aware that a suspected officer's compelled testimony also could not be used against anyone else. Hoffman stated that no member from the 63 Precinct was present for the P.G. 206-13 hearing.

Officer Andre Grant

Grant is a five-year member of the Department and has been assigned to the 63 Precinct for the past three years.

Grant testified that on February 24, 2008, he was on duty and his assignment was "conditions auto." Grant stated that he was in a Department vehicle that night with his partner, Officer Fadugba. They were both in uniform. Grant testified that at some point during his tour, he responded to a "52" at "5313 Avenue N," which meant "fighting at the location." The address was a catering hall.

Grant stated that he responded immediately since he was only a couple of blocks away and when he got to the scene, there was one car already there. Grant testified that he encountered a uniformed officer he knew, Officer Velez, in the downstairs area of the catering hall. Grant described the downstairs area as similar to a small vestibule or a coat check area. Velez was speaking to a female near the bottom of the stairs while Fadugba was on the side speaking to a male, who Grant described as agitated.

Grant stated that there was a group of about six to ten people standing behind Fadugba. Grant explained that the male that Fadugba was speaking with, sat on a table that subsequently collapsed. At that point, Grant had entered the vestibule area and stood behind Fadugba, with his back to the crowd. Then, Grant saw an arm reaching past him towards Fadugba from over his right shoulder. He immediately turned around and told this person, who was later identified as the Respondent, to step back. Grant testified that he had to tell the Respondent to step back about three or four times and each time, the Respondent would at first comply by stepping back but then come forward towards Grant again. The Respondent had not identified himself as a police officer at this point. The last time the Respondent came towards Grant, Grant took a step back and fell over a makeshift garden. The Respondent also fell down with Grant. After Grant and the Respondent got up and Velez and Fadugba had the Respondent against the wall, everyone

began to yell out that the Respondent was an officer. At that point, the Respondent pulled out his ID. A sergeant and a lieutenant had arrived by this time and Grant informed them about what had occurred and that the Respondent was an off duty officer.

With regards to the chance that the Respondent did not hear Grant's instruction, Grant explained that the Respondent was a couple of inches away and that the Respondent did in fact respond by stepping back. Grant further explained that he spoke in a loud voice and is used to dealing with crowd control situations. Grant did not remember if the Respondent said anything during this interaction, which lasted about three to five minutes. Grant stated that he did not personally know the Respondent at that point and did not know that the Respondent was a police officer at the time of this interaction. Grant stated that he was not hurt from the fall. Grant testified that he was not able to make a determination as to whether the Respondent was intoxicated or unfit.

On cross-examination, Grant explained that there was a makeshift garden in the vestibule area that had fake plants and rocks inside of it and it was in front of the garden. Grant confirmed that the Respondent did not push him when they both fell over the perimeter rocks. Grant was unsure if anyone else fell into the garden.

Grant stated that he was not aware that Velez knew, before Grant and the Respondent fell into the garden, that the Respondent was an officer. Grant did not have an opportunity to speak to Velez prior to falling into the garden and did not speak to Velez before leaving the scene. Grant testified that he spoke to Sergeant McGill at the scene but McGill did not mention that Velez informed McGill that the Respondent had identified himself to one of the officers at the scene prior to falling into the garden.

Grant clarified that he was at the scene for about three to five minutes before

falling into the garden. Grant testified that the Respondent did not threaten him, act in a profane manner towards him, or grab him at any point. Grant did not know if the Respondent was armed at the time.

On redirect-examination, Grant stated that the reason he stepped back, which caused him to fall, was because the Respondent was walking towards him.

During further cross-examination, Grant confirmed that every time he gave an order, the Respondent obeyed.

Sergeant Michael McGill

McGill is a twelve-and-a-half year member of the Department and has been assigned to the 63 Precinct for over five years. He has held the rank of sergeant for over five years.

McGill testified that on February 24, 2008, he was on duty, in uniform and assigned as Patrol Supervisor for that day. McGill stated that he was working with another officer, Officer Konkowski. McGill explained that his basic duties as a patrol supervisor is to "turnout the platoon" and supervise the officers on patrol. At some point during his tour, he responded to "5313 Avenue N," which is the Glen Terrace Catering Hall. McGill stated that he responded to that location because there was a call for an "85," which meant that additional units were needed for a large fight at that location.

McGill testified that when he first arrived at the scene, he saw Grant, Fadugba, and Velez in the downstairs area. McGill stated that the downstairs area was a square room, about 15 feet by 10 feet, that had a coat check area. Along with the officers, McGill stated that there were also about 25 civilians in that area.

McGill testified that there was a big commotion downstairs and he saw a man, who was later identified as the Respondent, in the far corner of the room by the wall, yelling and trying to get past the civilians. McGill approached the Respondent and asked him why he was so upset. The Respondent continued to yell over McGill's shoulder and tried to get past McGill. McGill asked the Respondent to calm down and explain what was going on. The Respondent stated that he was "on the job" and McGill requested to see identification. The Respondent again continued to yell and get past McGill. Finally, at McGill's repeated request for identification, the Respondent pulled out his ID, which was in a plastic holder. At this time, McGill told the Respondent to calm down and relax but the Respondent was still "very irate and combative." Then, Lieutenant Llauro came over to McGill and asked him to "collar [the Respondent] for discon."

McGill explained that the Respondent had been trying to get past him to get to Grant and Fadugba, who were about three or four feet behind McGill. McGill did not recall what the Respondent had been yelling. According to McGill, the first time he asked the Respondent to identify himself, the Respondent did not answer, as if he did not hear McGill. Other than asking for identification, McGill only asked the Respondent to calm down and talk to him. However, the Respondent did not listen, according to McGill, and instead kept yelling over McGill's shoulder. McGill testified that the Respondent's combative behavior was not an appropriate way to interact with a supervisor and he was surprised by the Respondent's conduct.

McGill stated that later on at the precinct, a fitness for duty report was filled out and the Respondent was found unfit due to his combative attitude, the faint smell of alcohol on his breath, and his red, glassy eyes. McGill testified that he considered the

Respondent pretty intoxicated and imagined that he probably had “more than a few drinks.” McGill explained that when the lieutenant instructed him to arrest the Respondent, he told the lieutenant that the Respondent was an off duty member of service. According to McGill, the Respondent was not told that he was going to be arrested but instead the Respondent was directed to go see the lieutenant in the next room. McGill did not know if the Respondent heard the lieutenant instruct McGill to arrest the Respondent. McGill testified that the Respondent was never handcuffed at the scene and he was never arrested that evening.

On cross-examination, McGill confirmed that the Respondent did not identify himself, or pull out his ID, until McGill had asked him to. McGill stated that when he got to the downstairs area of the catering hall, the Respondent was up against the wall and Velez and Fadugba were standing a few feet in front of the Respondent. McGill believed the other officers had been down in the vestibule area for about two minutes before he arrived. McGill stated that the lieutenant was the last person to get down into the vestibule area.

McGill testified that he did not see any of the interaction between the Respondent and Grant. McGill stated that he only saw the officers yelling and that he finds it unusual that Grant would state that the Respondent was never yelling. McGill reaffirmed that the Respondent was combative but confirmed that the Respondent did not push, kick or threaten anyone. McGill stated that when he arrived in the vestibule area, the Respondent was not on the ground but he was standing up. He heard the Respondent yelling but could not make out what the Respondent was saying. McGill stated that he did not ask the Respondent that evening whether he had identified himself prior to McGill asking

him. He also did not recall anyone telling him that the Respondent was an officer.

Sergeant John Baldino

Baldino is a sixteen year member of the Department and has been assigned to the Brooklyn South Investigations Unit for three and a half years. He has held the rank of sergeant for four years.

Baldino testified that on February 24, 2008, he went on a call out that evening, which is part of his duties at the Brooklyn South Investigations Unit. Baldino explained that a call out occurs if there is an off duty police incident or any police incident involving an member of service and his responsibility is to go out and help in the investigation. Baldino stated that he responded to a call that came in around one in the morning and he headed over to the 63 Precinct. When Baldino arrived at the precinct, Captain Hoffman, the duty captain, Sergeant Burzumato, and Sergeant Oloff, from Baldino's command, were all present at the 63 Precinct.

Baldino stated that when he arrived at the precinct, the duty captain had informed him that an off duty member of service, the Respondent, was involved in a dispute at a catering hall. Baldino also recalled that there were responding officers from the 63 Precinct who were involved in the incident. These responding officers Grant, Velez, Fadugba, McGill and Llauro – were also present at the 63 Precinct when Baldino arrived. As part of his investigation, Baldino interviewed the responding officers. Hoffman, Burzumato, and Oloff were also present for the interviews of the officers, along with the particular officer who was being interviewed and the PBA delegate.

Baldino stated that these interviews were recorded on a standard electronic tape

recorder and that he checks the equipment before beginning a recording. He testified that he checked the recorder on that evening before interviewing the responding officers and that he was able to record the interviews. Baldino also later reviewed the tape to determine if the interviews were accurately recorded, which, according to Baldino, they were. After identifying and recognizing a cassette tape used to interview the officers (DX 4), Baldino confirmed that all the interviews were recorded on that one tape, including, in particular, Velez and Fadugba.

Baldino testified that he reviewed the transcripts of the recordings of Velez and Fadugba while listening to the recordings. Baldino identified and recognized the transcript of Velez's interview (DX 4A) and confirmed that he signed the first page of this document. With regard to this transcript, Baldino stated that he made some corrections to the transcript. He stated that there were some spelling errors and certain parts that were inaudible, but otherwise, the transcript was accurate as to the tape recorded interview of Velez. The interview of Velez lasted six minutes.

Baldino testified that he also reviewed the transcript of Fadugba's interview (DX 4B), which was signed and dated by Baldino when he reviewed it, while listening to the corresponding audio tape. Baldino stated that he made some corrections during his review of the transcript but otherwise, the transcript of Fadugba's interview was accurate as to the contents of the interview. He explained that a few names were misspelled and he corrected as many as he could. The interview of Fadugba lasted eight minutes.

Baldino confirmed that the Respondent was suspended as a result of the Respondent's activity on February 24, 2008, and as part of that suspension, the Respondent's weapons were taken away. Baldino stated that he had retrieved the

Respondent's personal profile to see what weapons the Respondent had possession of. After reviewing the last page of the Respondent's personal profile, Baldino confirmed that the Respondent had three weapons with the Department – a Smith and Wesson automatic, a Kahr automatic, and a Sig Sauer automatic.

Baldino explained that he went with the Respondent to his home to retrieve some of the weapons. The Respondent opened a safe and handed over one weapon, which was one of the enumerated weapons on the list in the Respondent's personal profile. After the Respondent handed over the weapon, Baldino testified that he noticed two additional weapons in the Respondent's safe. At that time, Baldino asked the Respondent to step back and Baldino retrieved both weapons. According to Baldino, the Respondent had not at that point told Baldino that he had additional weapons that he needed to turn over and Baldino believed that the Respondent was not going to turn over or tell Baldino about the weapons. Baldino testified that the Respondent stated that the additional weapons in his safe belonged to his uncle who had passed away. Baldino stated that neither of those weapons was listed in the Respondent's personnel profile, but, both weapons were ultimately vouchered.

According to Baldino, he intended to conduct a further investigation into those weapons and ask the Respondent additional questions. However, Baldino was unable to do this because the Respondent's attorney declined for the Respondent to speak during the P.G. 206-13 interview. Baldino explained that after his call out was completed that evening, he did not do any other investigation into this case since the case was forwarded to another investigative unit. Baldino testified that since his interaction with the Respondent occurred several hours after the incident, he was not able to determine

whether he was unfit for duty or intoxicated. Baldino stated that there was a faint smell of alcohol on the Respondent but Baldino could not determine at that time whether he was unfit. However, Baldino did interact with the Respondent enough for the Respondent to answer questions. Baldino confirmed that he did ask the Respondent about the guns and the Respondent was able to understand and answer Baldino. Furthermore, the Respondent directed and led Baldino to the Respondent's home. Baldino affirmed that the Respondent seemed capable of walking at that time and the Respondent did not seem to be under any kind of physical duress. Baldino testified that the Respondent was not arrested at any time during the call out and that he was not aware of any call made to the District Attorney's office in consideration of arresting the Respondent.

On cross-examination, Baldino testified that the Respondent was found unfit for duty by three supervisors. Baldino stated that he did not know when the Respondent was found unfit but he knew that two of the supervisors who arrived first at the scene found the Respondent unfit. Baldino explained that he believed that when he tried to conduct the PG 206-13 for the Respondent, he had already been told by the supervisors during their respective interviews that they found the Respondent unfit for duty. Baldino confirmed that one of the three supervisors who found the Respondent unfit for duty was present during the Respondent's interview. Baldino reaffirmed that he could not make a determination as to whether the Respondent was fit or unfit for duty that evening.

Baldino stated that the Respondent did not tell Baldino that he received the two firearms from his uncle just several days before the incident and Baldino did not recall ever being made aware of this.

Baldino was asked to read certain parts of the transcript of Fadugba's interview (DX 4B) where Fadugba stated that on the evening of the incident, after holding the Respondent against the wall, the Respondent identified himself as an officer to Fadugba. Fadugba then stated that he let the Respondent go and at that point, Llaurado and McGill took over the situation. Fadugba was not involved from then on. Baldino stated that according to Fadugba's transcript, it appeared to him that the Respondent identified to Fadugba before McGill arrived, but he could not make a determination about the Respondent identifying himself to any other officer besides Fadugba at that time.

Sergeant Jason Moran

Moran was recalled by the Department.

Moran testified that in February 2008, he was assigned a follow-up investigation involving the Respondent, who was suspended in February 2008. As part of that investigation, Moran investigated two weapons, a Smith and Wesson and a Krueger black powder, which were recovered from the Respondent. Moran stated that generally, the issue with the weapons was that there was no record of either of them with the Department. There was no record or registration history of these firearms on the Respondent's personnel profile, with the range, the Force Record, and the New York State Police. Moran also conducted a New York State Police Inquiry Network check to see if the weapons were stolen, which they were not.

Moran testified that based on the UF-49 prepared by Hoffman, the Respondent stated that he received the weapons, which belonged to his late uncle, from his aunt. Moran stated that he identified the Respondent's uncle as Earl Forte, who had a

background in law enforcement. Forte was a “special patrolman” for Westchester County for a few months out of the year during 1962, 1963, 1966, 1967, and 1968. Moran contacted the Police Department in Westchester County to inquire into Forte’s employment with them. Because they only had records dating back to a certain time period, the Westchester County Police Department did not have information on what the position of “special patrolman” entailed, whether Forte was in a position where he carried a weapon, whether a weapon was ever provided to Forte as part of his employment, or whether a weapon was ever registered to Forte through the Department.

Moran testified that he also called the New York State Police to see if Forte had a pistol permit and he did not. Moran also conducted a BCI Triple I check, which is a criminal background check, into Forte. The background check indicated that Forte had a number of prior criminal incidents during the 1970s. Forte had a total of sixteen arrest charges – four felonies, ten misdemeanors, and two violations beginning in 1970. Most of the charges were for possession of a controlled substance. Forte had one charge in 1970 for possession of a loaded gun.

Moran was able to verify Forte’s death, first by speaking with his wife, the Respondent’s aunt, and then obtaining a copy of Forte’s death certificate from the New York City Department of Records Vital Statistics. Moran was shown the death certificate and he stated that the date of death was November 24, 2007. It was stipulated that the date of death was November 24, 2007. Moran testified that he interviewed Forte’s wife and she confirmed that Forte passed possession of the two firearms to the Respondent. However, she had no idea how Forte came into possession of the weapons.

Moran testified that he also interviewed the Respondent on June 10, 2008. After

reviewing the transcript of the interview, Moran confirmed that the Respondent stated that he had received a bill of sale for the weapons. After reviewing the bill of sale (DX 2), Morgan confirmed that the bill of sale indicates that the Respondent received the weapons from his aunt on February 18, 2008. The bill of sale was also signed by the Respondent's aunt and was signed and sworn on June 13, 2008, four months after the Respondent would have received the weapons. Moran testified that he received the bill of sale by fax from the Respondent on June 16, 2008. Moran stated that the bill of sale could not have been presented as a bill of sale for the weapons in February 2008 since the document was signed and sworn in June 2008.

On cross-examination, Moran confirmed that he was unable to unearth any records concerning the ownership of the firearms. He also confirmed that Forte's wife told him that she found the firearms when she was selling her apartment after Forte passed away and she had no idea about the firearms prior to her finding them. Moran stated that she gave the firearms to the Respondent on February 18, 2008. It was stipulated that the Respondent was suspended on February 24, 2008. Moran agreed that this occurred six days after the guns came into the Respondent's possession. Moran stated that he was not present when the weapons were recovered from the Respondent's home but he did learn that the guns were recovered from a secured safe at the Respondent's residence. Moran did not know of any evidence that the Respondent used the firearms or whether anyone tested if the weapons were actually operable. To Moran's knowledge, the firearms had only been in the safe.

Sergeant David Villanueva

Villanueva is a 14-and-a-half year member of the Department and has been assigned to the Licensing Division since 2001. He has held the rank of sergeant since 2004.

Villanueva stated that his primary duty at the Licensing Division included conducting investigations with the Firearms Unit for misconduct by a licensee. As part of his responsibilities, Villanueva is familiar with the requirements and lawful manner with which a member may acquire a firearm. Furthermore, Villanueva is familiar with the Patrol Guide section that relates to a member possessing a firearm and the various statutes and regulations that relate to the possession of firearms in New York State. Villanueva has testified on about ten occasions in both criminal court and the Supreme Court on the rules and regulations governing pistol licenses in the City of New York.

Villanueva testified that there are five sources by which a member may legally acquire a firearm. A member may legally acquire a firearm from anyone from the New York State Police, from a firearms dealer, from a New York State peace officer, from the equipment section, or from a licensee from the State of New York. Villanueva stated that once a member acquires a firearm, his or her responsibility is to present all paperwork, which includes a bill of sale and an Acquisition/Disposition form, to the desk officer. Patrol Guide section 204-10 refers to this particular procedure.

Villanueva explained that there are different procedures depending on the source that the firearm was acquired from. For example, if a firearm is acquired from a licensee, in New York City, a member must forward a "49 Request Permission Authority to Purchase a Firearm from a Licensee" form to the commanding officer of the License

Division. Then, after a background check and approval from the commanding officer, the 49 gets sent to the front desk with the bill of sale and the Acquisition/Deposition Form, which the member has to fill out at that time. However, if a firearm is acquired from another police officer, a peace officer, or a gun dealer, all the member has to do is bring the actual bill of sale and the filled out Acquisition/Disposition Form to the desk officer, who will then make a phone call to record this on the member's Force Record.

Villanueva testified that a member of the service is alerted of these lawful venues to obtain a firearm through the Patrol Guide and the penal laws. After recognizing and reviewing the "Acquisition or Disposition of Firearms by Police Officers -- Report to New York State" form (DX 5), Villanueva confirmed that this form indicates the five sources from where an officer may lawfully acquire a firearm. There is no additional space for an officer to indicate acquiring a firearm from a different source other than the five listed. Villanueva explained that the purpose of this form is to make sure that the firearm purchased by a member is registered with New York State. The Acquisition form, which first goes to the desk officer, gets forwarded eventually to New York State, which keeps a database of all registered firearms by members of the service. Villanueva confirmed that just about every firearm that is purchased in New York should be listed in the New York State database.

After reviewing Patrol Guide section 204-10, subsection 6, (effective date April 10, 2009), Villanueva stated that the time frame to submit a bill of sale is "without delay." Villanueva testified that there was a previous version of that Patrol Guide section which was revised in 2002. According to Villanueva, the "without delay" requirement has been the same from 2002, until the present time.

Villanueva confirmed that Patrol Guide section 204-10 also refers to the Acquisition or Disposition form. He stated that Penal Law Section 400, Sub-section 12C, is written on the back of the Acquisition form. This penal law section requires that the Acquisition form must be completed within ten days of purchase. However, the penal law section only deals with the Acquisition form and not with the bill of sale or the Force Record, which are covered by the Patrol Guide.

After reviewing Patrol Guide section 204, Villanueva confirmed that Section 204-08 refers to the registering of a weapon on the Force Record. This section directs that every firearm that an officer owns must be reported on the Force Record. Villanueva explained that if an officer were to obtain a weapon from an unknown source, a source other than the five listed on the Acquisition form, the officer would need to give the weapon to law enforcement to be vouchered. Villanueva testified that this requirement is stated in Penal Law Section 400. According to Villanueva, if a firearm is not registered, then the firearm has to be vouchered and sent to the lab to verify that the weapon was not used in the commission of a past crime.

Villanueva testified that a member of the service or anyone under New York State law is not permitted to possess an unregistered weapon. Villanueva stated that the fact that a weapon, which is unregistered, may have belonged to a police officer in the past does not now make the weapon legally registered. Villanueva explained that an officer given an unregistered weapon would not be able to convert the weapon and legally possess it because an officer may only purchase a registered firearm, as described in the list of five sources from where an officer may obtain a firearm. According to Villanueva, an officer who comes into possession of an unregistered weapon would need to have it

vouchered. Villanueva also stated that a firearm that was vouchered and found to be unregistered would be destroyed within one year.

Villanueva explained that when a member of service or a peace officer retires, that member must obtain a pistol license, "Pistol License for the Retired Members of Service," from his or her county of residence to continue possessing a firearm. Without this license, a retired member of service cannot continue to carry his or her firearm. The original registration of a firearm does not continue to attach once a member of service retires. Since they are considered regular civilians after retirement, retired members have to register the firearm with the county from where they are going to get a pistol license from.

Villanueva testified that he would inform a member of service to voucher an unregistered weapon if a member were to indicate to Villanueva that he or she obtained a weapon from a relative, who was a former police officer.

Villanueva testified that during the course of his duties, he has seen bill of sales in the past submitted with firearms and he was familiar with what is required for a legitimate bill of sale. After reviewing the Respondent's bill of sale (DX 2), Villanueva testified that this bill of sale would not be acceptable because a legitimate bill of sale would require more information, such as serial numbers, type of firearms, calibers, etc. Furthermore, Villanueva noted that there is a time gap on the bill of sale between the date of sale, February 18, 2008, and the date it was notarized, June 13, 2008. Villanueva also confirmed that the bill of sale does not appear to be from one of the five sources that a member of service can legally acquire a firearm, since the document describes the Respondent's uncle as a former patrolman and not as an active member of service or

someone with an active pistol license. Villanueva stated that back in February 2008, a person with this document would not be able to submit it to the desk officer as a bill of sale because the document is missing information and the purchase was not made from one of the five sources. The desk officer would have directed that the firearm be vouchered if someone had attempted to provide this bill of sale at that time. According to Villanueva, if per chance, the desk officer was unaware of these requirements and forwarded this bill of sale to the New York State Police, they would send the bill of sale back since one of the five sources of acquisition was not utilized.

On cross-examination, Villanueva confirmed that his testimony about the administrative failure with regards to the two firearms in question was the failure of the Respondent to follow the Patrol Guide. Villanueva did not know when these firearms were recovered from the Respondent and has never seen the firearms. Villanueva also did not speak to the Respondent and did not do any investigation into where the guns originally came from. Villanueva spoke to Moran briefly but Moran did not tell Villanueva that the Respondent was charged with administrative charges for violating the Patrol Guide more than two years ago.

Villanueva explained that the phrase “without delay” is open for interpretation and there is no definition of how long “without delay” is. The only information in the additional data section of the Patrol Guide is the 10-day requirement for the Acquisition form. The Licensing Division does not have its own internal number for determining what “without delay” means. Villanueva confirmed that this is determined on a case by case basis. Villanueva also affirmed that to the best of his knowledge, there was no allegation of any criminal misconduct while the Respondent was in possession of the

firearms and that there are only administrative allegations.

On re-direct examination, Villanueva confirmed that Penal Law Section 400, which states that an unregistered firearm turned over to law enforcement must be vouchered, applies to a situation where a member of service received a firearm that was not registered.

During further cross-examination, Villanueva affirmed that this was not a crime, but just a procedure that the Respondent had to follow.

During further questioning by the Court, Villanueva testified that in his experience, the bill of sale and the Acquisition Disposition form are submitted by a member of service at the same time.

During further cross-examination, Villanueva confirmed that there is nothing in the internal Licensing Division, the Patrol Guide, or in the penal law that prohibits the two documents from being filed at separate times. Villanueva also affirmed that in a situation where the firearms are taken away from an individual by law enforcement before the ten-day filing period is over, the firearms will be vouchered and therefore, they will fall within the proper rules of the penal law and the Patrol Guide.

On re-direct examination, Villanueva testified that in order for weapons to be registered with the state police and to be put on the Force Record, both the bill of sale and the Acquisition Disposition form must first be submitted.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent has been a member of the service since July 2002. After the Police Academy, the Respondent was, and still is, assigned as a police officer to Transit District No. 33 in Brooklyn. The Respondent's position is administrative clerk.

On the evening of Saturday, February 23, 2008, the Respondent attended a wedding, which had about 50 to 80 guests, at the Glenwood Catering Hall in Brooklyn. He was off duty that day. The Respondent testified that he did consume alcoholic beverages that evening.

The Respondent stated that in the early morning of February 24, 2008, there was an altercation in the reception hall between the bride's brother and his brother's girlfriend. The Respondent testified that he was not armed at the time, but he did have his New York City Police identification card. The Respondent explained that when he heard the commotion, he went to the downstairs area of the catering hall, which was like a "little hall area" with a makeshift garden and bathrooms, to see if he could break up the altercation. There were about 40 people in the downstairs area when he got there. At this point, the Respondent did not know that the police had been called to the scene and he did not see any police officers when he first arrived downstairs.

The Respondent explained that when uniformed members of service arrived at the scene, he was trying to keep the two parties that were fighting away from each other. According to the Respondent, up to this point, he had consumed a couple of glasses of wine. The Respondent testified that it would be fair to say that on the early morning of February 24, 2008, he was intoxicated at that time. The Respondent stated there was "just a bunch of shoving and pushing" as he tried to break up the fight. He did not

personally recognize the officers that arrived in the lower hall area. He explained that the officers told everyone to “step back” and it seemed as if they were trying to get control of the crowd. According to the Respondent, when he was first told to “step back” by an officer, he did. However, the Respondent was pushed forward by the crowd a few times and the officer (Grant) had to tell the Respondent to “step back” about two or three times. The Respondent testified that he did not give any resistance to the officer who had asked him to step back.

The Respondent explained that after the second or third time that the officer told him to step back, there was a “big push” by the crowd that came from behind him and the Respondent ended up falling onto the officer and falling into the makeshift garden along with the officer. Both the Respondent and Grant were helped up by the crowd after falling into the garden. Then, according to the Respondent, Grant went to grab the Respondent and the crowd yelled out that the Respondent was a police officer. The Respondent testified that he identified himself to Grant, about less than 30 seconds after being picked up off the ground, by pulling out his New York City Police identification card. The Respondent stated that he identified himself about 15 minutes after the time Grant came to the lower area to control the crowd.

The Respondent stated that at the time he identified himself, he did not see any sergeant present; however, a sergeant did arrive later on. The Respondent explained that when the lieutenant arrived, the lieutenant pulled the Respondent into a room and asked the Respondent questions about what happened. After speaking with the lieutenant about what happened that evening at the catering hall, the Respondent was told that he would be taken to the precinct and he was then escorted by the lieutenant to the precinct. The

Respondent testified that once he arrived at the precinct, he contacted a District 33 PBA delegate and told the delegate that he might be suspended because there were allegations that he was intoxicated. The District 33 delegate sent Jeff Groder, a PBA attorney, to the 63 Precinct to assist the Respondent. The Respondent stated that he had been in the precinct for about two hours by the time Groder arrived.

The Respondent testified that he was questioned pursuant to 206-13 of the Patrol Guide on the morning of February 24, 2008. According to the Respondent, just before the "PG hearing" was about to begin, Groder told the Respondent that he was told that the Respondent was unfit for duty and was being suspended. The Respondent stated that Groder objected to the hearing being conducted because the Respondent was already found unfit for duty. The Respondent testified that Groder advised him not to answer questions and so, the Respondent followed the legal advice given to him. Then, the Respondent was told that he would be suspended and counseling services were offered to him at that time. The Respondent's identification card was already taken away by the time he was suspended.

The Respondent confirmed that he told the officers at the precinct that he had firearms in a safe in his home. The Respondent testified that he had five guns and on February 24, 2008, there were three guns listed on his Force Record. The Respondent explained that he came into possession of the two unlisted guns on February 18, 2008, just six days prior to the incident. The Respondent stated that he received the guns from his aunt in her residence in Mount Vernon, New York. The Respondent explained that his aunt found the two weapons in the course of cleaning her home and preparing to move. According to the Respondent, she gave the weapons to the Respondent because he

was an officer and she figured he would put them in a safe place. The Respondent confirmed that when the firearms were taken from him on February 24, 2008, he was asked questions about the firearms by Brooklyn South Investigations. The Respondent testified that he never used the firearms.

The Respondent stated that there was no mention of the firearms that he received from his aunt in the original charges that he was served with. The Respondent was served an amended set of additional charges in October 2009. The Respondent confirmed that he was specifically asked about the two unlisted firearms during his second PG hearing in June 2008 and that the Department was fully aware of those firearms at that time. According to the Respondent, he was not told at that time that he was being served with charges concerning the two firearms. The Respondent stated that, after June 2008 through the end of 2008, no one contacted him concerning the two unlisted firearms.

After the June 2008 PG hearing, the Respondent provided the investigator with a bill of sale from his aunt. According to the Respondent, between June 2008 and October 2009, no one requested any action by the Respondent concerning the two firearms. The Respondent testified that he was served with the amended charges after the Departmental trial began and that no one contacted him about the additional charges prior to the start of the trial.

On cross-examination, the Respondent confirmed that the original charges contained a specification that referred to weapons not reported on his Force Record and he knew that this charge referred to the two unlisted weapons found in his safe. The Respondent stated that prior to heading to his residence on February 24, 2008, he did not

tell the officers who were collecting his weapons that he had two additional weapons because he was “distracted at the time.”

The Respondent affirmed that during the GO-15 on February 24, 2008, he was advised that he was required to answer questions by interrogating officers and that if he refused, he could be subject to Department charges. The Respondent had never been interviewed before that time but he was aware of the sections of the Patrol Guide regarding interviews. The Respondent reaffirmed that his attorney advised him not to answer the questions during the GO-15. The Respondent’s attorney did not force him not to answer nor did the attorney physically restrain the Respondent in any way.

The Respondent stated that when Grant told the Respondent to “step back,” he did not identify himself as a member of service because “there was too much commotion going on.” The Respondent explained that “the space was so small,” in regards to whether he was able to step to the side when the crowd was pushing him forward. The Respondent stated that he did not push back against the crowd. The Respondent did not recall whether he was reaching past Grant when Grant was telling him to step back. He also did not recall whether there was an officer standing directly behind Grant. In regard to yelling at the officers at the scene and using profanity, the Respondent did not recall doing this. The Respondent stated that he did not attempt to approach the officers to identify himself when he first saw them arrive on the scene because he was “just trying to break up the fight.”

The Respondent testified that he never presented a bill of sale for the two unlisted weapons to the desk officer. He stated that he never completed the Acquisition/Disposition Form because the weapons were taken away from him. The Respondent

explained that he received the bill of sale from his aunt on February 18, 2008 but the document had yet to be signed by his aunt. The Respondent's aunt signed it eventually in June 2008.

The Respondent testified that he had approximately three to four glasses of red wine at the catering hall over the course of four hours. According to the Respondent, he was intoxicated after having these drinks. The Respondent did not have any further alcoholic beverages after he was taken to the precinct. The Respondent testified that he was still intoxicated at around 6 a.m., when he was being interviewed at the precinct, even though it was several hours after he had his last alcoholic beverage. The Respondent confirmed that he was able to understand what his attorney was saying to him at the precinct and what the officers interviewing him were explaining to him about the Patrol Guide. The Respondent affirmed that he was too intoxicated to answer questions at the time the officers were attempting to interview him. However, at the time that he was actually drinking at the catering hall, the Respondent did not feel that he had too much to drink.

On redirect examination, the Respondent testified that the sole reason why he did not answer the questions at the GO-15 hearing on the morning of February 24, 2008 was because he was advised by Groder, the PBA attorney.

During questioning by the Court, the Respondent testified that he did not know whether Grant was directing just the Respondent to step back or generally to everyone in the room. However, the Respondent stated that he stepped back anyway. The Respondent did not recall whether other people actually did step back at that time. With regard to whether the Respondent observed anyone else moving forward toward Grant,

the Respondent explained that the crowd “was like a wave back and forth.” “So if they step back, I step back.” Therefore, the Respondent confirmed that it would be fair to say that other people were moving forward and back in the same way that the Respondent was. The Respondent described that the makeshift garden was in front of him and the parties that he was trying to separate were to the right and to the left of him. Grant was also somewhere in front of him.

The Respondent testified that it was initially told to his PBA delegate that he would be suspended for being unfit for duty and not to him. He was unsure of what time that conversation took place. The Respondent stated that he was first told at the “PG” that he was suspended. The Respondent testified that his identification card had been taken from him and given to the lieutenant at the catering hall. The Respondent stated that when the lieutenant took him aside to a small room in the catering hall to talk about what happened, the lieutenant did not discuss at that time the Respondent’s condition.

On redirect examination, the Respondent stated that he spoke with a captain, a lieutenant and the commanding officer between the time he arrived at the precinct and the time he refused to answer questions on the advice of his counsel. The Respondent testified that he was unsure, but he assumes that the finding of his being unfit for duty was based on the conversations with the three supervisors he spoke with at the precinct.

FINDINGS AND ANALYSISSpecification Nos. 1-3

The Respondent stands charged herein with refusing to comply with repeated direct orders from Police Officer Andre Grant to stop advancing and to step back and away from Grant and other members of the service during a crowd control condition. He was also charged with consuming an intoxicant to the extent that he was found unfit for duty. Additionally, he was charged with engaging in conduct prejudicial to the good order, efficiency and discipline of the Department in that he failed to identify himself to on duty members of the service after becoming involved in a police incident.

Specification Nos. 1, 2 and 3 arise out of an incident that occurred at 5313 Avenue N, a catering hall, in Brooklyn where some kind of melee had broken out. Grant testified credibly that he arrived at the scene where he saw the Respondent. He further testified credibly that the Respondent did not identify himself as a member of the service and that he refused to follow his directive to back up. Grant testified credibly that during a crowd control situation, he had to tell the Respondent to step back about three or four times. Each time the Respondent would step back, he would then come forward again. The last time the Respondent came forward again resulted in both the Respondent and Grant falling over a makeshift garden to the ground in the catering hall. It was only then, as the crowd uttered that the Respondent was a police officer that the Respondent attempted to pull out his ID.

The Respondent's defense that he could not hear Grant was not supported by the evidence. Grant testified that the Respondent was a couple of inches away from him as

he spoke in a loud tone to get the crowd under control. Grant also reiterated that each time he gave the command, the Respondent stepped back for a moment but proceeded to come forward again.

McGill also credibly described the failure of the Respondent to identify himself or to comply with his directive to identify himself. McGill, the patrol supervisor on the scene, and in uniform, observed the Respondent yelling and trying to get past civilians. He approached the Respondent and asked him why he was upset. The Respondent continued to yell over McGill's shoulder and tried to get past him. Although the Respondent said he was "on the job," McGill asked for his ID and the Respondent continued to yell and try to get past him. Only after repeated requests did the Respondent finally pull out his ID from a plastic holder. The Respondent's claim that he was in fact attempting to comply with the directives of on duty officers is not credible or persuasive. Clearly, he should have recognized McGill's rank when McGill initially approached him and he had a duty to immediately identify himself given the commotion that was at bay.

Accordingly, the Respondent is found Guilty of Specification Nos. 1 and 3. The Respondent has pleaded Guilty to Specification No. 2, being unfit for duty and as such is found Guilty of Specification No. 2.

Specification No. 5

This specification alleges that the Respondent "did interfere with an official Department investigation, in that [he] did refuse to answer questions directed to him as part of an official Department investigation, as required."

The facts of this specification are not in dispute. Hours after the initial incident the Respondent was the subject of an official Department interview. The Respondent

through his attorney refused to answer any questions.

The Respondent has claimed that the attorney took this action because the Respondent was intoxicated and had been found unfit for duty. A review of the tape and transcript of the Respondent's official Department interview indicates that Respondent did not speak at all. When the interviewer asked what his name was, the Respondent's attorney gave the Respondent's name and then indicated that he would not answer any questions. No reason was given, on the record, as to why the Respondent was advised to refuse to answer questions and thus there was no opportunity for the interviewers to determine if there was a basis for further postponing the interview.

Grant testified that the call regarding the incident at 5313 Avenue N came in after midnight and McGill put the time of the response at about 30 minutes after midnight. The attempted official interview of the Respondent commenced some time after 6:50am and ended at 7:00am. This means that nearly seven hours passed during which time the Respondent undoubtedly sobered up substantially. On its face, the claim that the Respondent was unable to answer questions due to intoxication does not make sense.

Respondent's defense that he was acting on the advice of counsel is unavailing. To allow such a defense would eviscerate the ability of the Department to compel testimony at official interviews and place control over the time of such interviews solely in the hands of the attorney. To do so would be in derogation of the Administrative Code which gives the Police Commissioner statutory authority for the interrogation of officers, (see Interim Order No. 20 referencing P.G. 206-13, issued 06-19-06 and In the Matter of PBA v. NYSPERB, et al., 6 NY3d 563, 2006) and the plain language of Patrol Guide § 206-13.

Further, as noted by the Assistant Department Advocate (Advocate) there are a number prior cases where disciplinary sanctions, including dismissal have been imposed where a member of the service has refused to answer questions on advice of counsel.

(See, Disciplinary Case No. 66671/92 and Disciplinary Case No. 70472/95).

The Respondent is found Guilty of Specification No. 5.

Specification Nos. 4, 6, 7 and 8

The Respondent stands charged herein with failing to list two firearms on his Force Record; improperly being in possession of one or more unregistered firearms; failing to voucher unregistered firearms; and between February 18, 2008 and February 24, 2008 failing to submit, without delay, a copy of the bill of sale as required.

After the events outlined above, the Respondent was suspended. In the course of carrying out the suspension, the Respondent's firearms were confiscated. It was discovered that the Respondent had two firearms that were not on his Force Record, a Ruger and a .44 caliber Smith and Wesson. The Respondent acknowledges possession of these weapons, which he said came into his possession a few days before the incident at the catering hall. The weapons had belonged to his now deceased uncle who was a part time law enforcement officer. The Respondent stated that he received the guns from his aunt at her residence in Mount Vernon, New York. The Respondent explained that his aunt found the two weapons in the course of cleaning her home and preparing to move. Specification Nos. 4, 6, 7 and 8 relate to these two weapons.

During testimony taken on the first day of this trial, Moran, a Department witness, testified that there is, by State law, a ten-day period, within which someone has to list a

firearm on his Force Record. The Respondent had obtained the weapons within that ten-day period and once the weapons were taken from him he could no longer register them. As a result, the Advocate determined that the Department could not prove Specification No. 4.

Before the trial could resume the Department served what it called, "Notice of Amendment of Charges." In this new charging instrument, the Department dismissed Specification No. 4 and added Specification Nos. 6, 7 and 8.

The Respondent has argued that the new charges, which do not involve criminal conduct, are barred by the statute of limitations. It is certainly clear that charges served in October 2009 that relate to an incident that goes back to February 2008 are well outside the eighteen-month statutory period. The Department argues that because all of these specifications involve the same weapons they are valid charges under the "relation back rule."

The Court finds it unnecessary to consider the "relation back rule" with regard to these charges. As has been noted, Specifications Nos. 6, 7 and 8 were served after the commencement of the trial. Indeed this so called "amendment" occurred not merely after the commencement of the trial but after testimony was taken from several Department witnesses. Testimony from one of those witnesses, Moran, established that the specification which those three new specifications purportedly relate back to, could not be established. This is, on its face, shockingly unfair.

The Department can hardly claim surprise because the information that scuttled Specification No. 4 came from their own witness and was therefore presumably in their possession prior to the trial. Certainly it was within their power to obtain it.

In its memorandum of law in support of this “amendment,” the Department cites the New York City Rules regarding disciplinary proceedings against uniform and civilian members of the Police Department. The Department specifically cites 38 RCNY § 15-03 which it claims allows for charges and specifications to be amended “upon notice to all parties.” This rule is not intended to give carte blanche to the Advocate to amend charges at any time. Indeed, the specific section cited, 38 RCNY § 15-03 is entitled Pre-Hearing Proceedings indicating that the intent of the rule is that the charges be settled before the trial.¹

To allow the Advocate to manipulate charges after receiving adverse testimony from their own witness would set a very poor precedent. It would impact every trial because no Respondent would know when the charges were final, rendering trial preparation of little or no value. Moreover, Respondents and their attorneys might fear that the successful defense of one charge might lead, as here, to three more to replace it. Allowing such “amendment” would also discourage the proper and thorough preparation of disciplinary cases by the Advocate before trial. Under 38 RCNY § 15-02, the Deputy Commissioner of Trials has the responsibility to construe the rules regarding Departmental trials to promote the just and efficient adjudication of disciplinary proceedings. Allowing the Department to “amend” the charges in this case would promote neither justice nor efficiency.

The Court recognizes that in some rare and unforeseen circumstances, an amendment of charges after the commencement of trial might be fair and appropriate. This Court has the authority under 38 RCNY § 15-02 should that circumstance arise. But those circumstances, if they exist, are not present in this case. Specification Nos. 4,

¹ The Rules refer to the Department Trial as a hearing.

6, 7 and 8 should be dismissed.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined, see *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on July 1, 2002. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

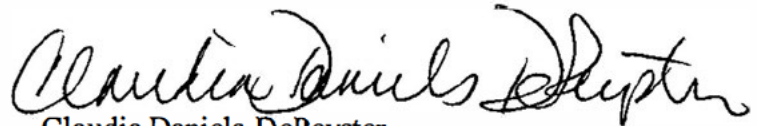
The Respondent has been found Guilty of three Specifications. He has been found Guilty of refusing to comply with repeat direct orders from a police officer to stop advancing during a crowd control situation, failing to identify himself to members of the service after becoming involved in a police incident and refusing to answer questions as part of an official Department interview. In addition, the Respondent pleaded Guilty to consuming an intoxicant to the extent that he was unfit for duty. The Department has recommended that the Respondent be Dismissed from his position as a member of the service. This recommendation is based on the fact that he refused to answer questions during an official Department interview.

In support of this recommendation the Department has cited several cases in which the refusal to appear at or answer questions at an official Department interview resulted in dismissal. Looked at more closely, those cases are distinguishable from the instant matter. In each of those cases, the member was about to be asked about serious suspected criminal conduct. The refusal was an obvious evasion.

In this case, although the underlying misconduct was serious, it was not criminal. Moreover there is Department precedent for imposing a penalty of less than termination

where there has been a refusal to answer questions at an official Department interview, (See Disciplinary Case Nos. 80075/04 & 80365/04 approved 10/06/05). Based on all the circumstances, this Court recommends that the Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at anytime without further proceedings. It is further recommended that the Respondent forfeit the 30 days he served on pre-trial suspension and that he also forfeit 30 vacation days for a total of 60 penalty days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials



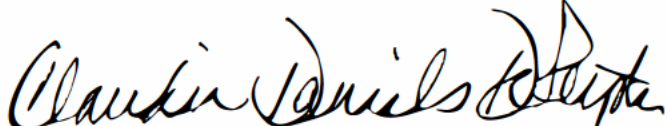
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LAMONT BROWN
TAX REGISTRY NO. 929787
DISCIPLINARY CASE NO. 83835/08

In 2007 and 2008 the Respondent received an overall rating of 3.0 "Competent" on his annual performance evaluations. In 2009 the Respondent received an overall rating of 3.5 "Above Competent." He has not been awarded any medals in his career to date.

[REDACTED]
[REDACTED] The
Respondent has no prior formal disciplinary record.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner Trials